

explain why he did not challenge the deed during his father's lifetime.

3. The petitioner claims that he had a beneficial interest in the house and did not consent to the deed. The petitioner shall explain whether he was a titled co-owner or, if not, the legal basis for his claim of beneficial interest.
4. The petitioner shall explain when Horden Powell died and whether his estate was probated. If Horden Powell's estate was probated, the petitioner shall provide copies of the court documents and any orders.
5. The petitioner states that he grew up in the house, but he does not state when he moved back into the house. He also does not state whether he signed a lease agreement with the decedent.
6. There is a civil matter (CL26-00664) (unlawful detainer) regarding this property and the petitioner's tenancy which was tried on April 15, 2026. In that matter, the court awarded restitution of the premises to the administrator of the estate. It does not appear that the petitioner raised the issue of his alleged beneficial ownership interest in the house in that matter. The petitioner shall explain.

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**IN RE THE ESTATE OF FRANCIS MARLENE PHILLIPS, DECEASED
PR25-00359**

Petition for Letters of Administration and for Authorization to Administer Under the Independent Administration of Estates Act

PREGRANT ORDER

This matter was continued from December 10, 2025 and February 4, 2026 to allow the petitioner to address issues with the petition. Nothing has been filed since the last hearing.

The court on its own motion continues this hearing to August 12, 2026 at 9:30 a.m. in Department 22. Pending the re-set hearing the petitioner shall resolve the following issues:

1. Petition, item 3.e: The decedent was survived by a spouse who died sixteen years after the decedent and would be an heir of the estate. While the petitioner seeks to waive bond, there is no bond waiver on behalf of the personal representative of the estate of Calvin M. Phillips. There is also no bond waiver from the personal representative of the estate of Richard Wayne Cruz who is also an heir of the estate.
 2. The proof of service does not show that notice was given to the personal administrator of the estate of Calvin M. Phillips.
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